

respondent then is only aggrieved in respect of being ordered to pay the costs of that which is the legal ground of complaint,—in all other respects he is a stranger. I entirely concur in the proposition that, although the Court will listen to a person who is a stranger, and who interferes to point out that some other Court has exceeded its jurisdiction, whereby some wrong or grievance has been sustained, yet that is not *ex debito justitiæ*, but a matter upon which the Court may properly exercise its discretion; as distinguished from the case of a party aggrieved, who is entitled to relief *ex debito justitiæ* if he suffers from the usurpation of jurisdiction by another Court. In the present case, all that the applicant can allege is that he has been wrongfully ordered to pay these costs. That is matter for application to the Court itself by which the decision was given to reform or redress by its own decree; and if redress cannot be obtained there, then to the Court of Appeal. On this ground, I am of opinion that this rule ought to be discharged.

Wightman J. I agree with what the Lord Chief Justice has said on the narrower ground, viz., the insufficiency of interest in the applicant in the subject matter to entitle him to make this application.

With respect to the main ground of application for a prohibition I entertain great doubt, because by stat. 20 & 21 Vict. c. 85, the Judge Ordinary has abundant jurisdiction in the first instance to inquire into the matter. The enactment in sect. 27 is, "It [200] shall be lawful for any husband to present a petition to the said Court, praying that his marriage may be dissolved, on the ground that his wife has since the celebration thereof been guilty of adultery." *Prima facie*, therefore, the petitioner and respondent being British subjects and being lawfully married, although in a country which for this purpose must be taken to be a foreign country, the husband had a right to go to the Court and pray that the marriage should be dissolved. The objection then arises that the marriage is one which is not within the jurisdiction of the Court. That must depend upon questions of fact to be determined somewhere; and it seems to me that the Judge Ordinary has a general jurisdiction to inquire into and determine those that may be raised as to the place where, or the circumstances under which, the marriage took place; and supposing he came to a wrong decision, I think it would be a ground for appeal rather than for prohibition. It is not, however, necessary to determine that matter.

Crompton J. I feel great difficulty as to the question whether this marriage is within the Act of Parliament relating to divorce and matrimonial causes; and agree in deciding the case on the narrower ground.

The applicant having had costs awarded against him under stat. 20 & 21 Vict. c. 85, s. 34, and being an adulterer, has no *locus standi* to complain of the dissolution of the marriage; the only suggestion is, that he is aggrieved because he is ordered to pay costs. But they are independent of the dissolution of the marriage. Sect. 34 gives the Court discretion to order all the costs of the proceedings to be paid by the adul-[201]-terer,—whether those proceedings are successful or not as to the dissolution of the marriage. And, even if that were not so, and the Judge had made a wrong order respecting the costs, that is a question of practice, and not a matter upon which it would be proper for this Court to grant a prohibition. I am of opinion that we ought not, in the exercise of our discretion, to entertain this motion on the application of a stranger.

At the same time I agree with my brother Wightman in thinking that the Court for Divorce and Matrimonial Causes is the proper Court to decide whether this marriage is within stat. 20 & 21 Vict. c. 85, s. 27. That Court is a high Court established by Act of Parliament, with jurisdiction over marriages in general, and their dissolution; and this marriage was brought before it on matters appearing to be expressly within its cognizance. Whether the marriage is one which falls within sect. 6, giving the Court jurisdiction, depends partly on law and partly on fact; and, looking at the scope of the Act of Parliament, I think that is one of the questions which that high Court is appointed to decide, subject only to an appeal to the still higher Court given by sect 56. This is not like the drawing away a case from the jurisdiction of another Court, for there is no other Court except the Court for Divorce and Matrimonial Causes which can decide the question. Such appears to me to be the law on this subject, though it is not necessary to decide it positively, and we have not heard a full argument upon it.

Blackburn J. It is not necessary to decide whether, if the Court for Divorce and